

Sixty-ninth Legislative Assembly of North Dakota
In Regular Session Commencing Tuesday, January 7, 2025

HOUSE BILL NO. 1209
(Representatives S. Olson, Frelich, Marschall, Osowski, Rohr, Hoverson, Motschenbacher)
(Senators Enget, Paulson, Weston)

AN ACT to provide for a legislative management report relating to a foreign adversary threat assessment conducted by the department of emergency services.

BE IT ENACTED BY THE LEGISLATIVE ASSEMBLY OF NORTH DAKOTA:

SECTION 1. DEPARTMENT OF EMERGENCY SERVICES - FOREIGN ADVERSARY THREAT ASSESSMENT - REPORT - LEGISLATIVE MANAGEMENT REPORT.

1. The department of emergency services shall:
 - a. Identify sectors and industries most vulnerable to foreign adversarial influence, including critical infrastructure, technology, agriculture, energy, and academia;
 - b. Assess foreign adversarial influence beyond land acquisition, including strategic investments, partnerships, and other forms of economic, educational, and political influence;
 - c. Evaluate existing investments and activities to determine compliance with federal, state, and local laws;
 - d. Identify sectors in which foreign adversarial influence is often unmonitored or under reported; and
 - e. Propose broad mitigation strategies relating to identified risks and vulnerabilities to enhance the state's ability to manage foreign adversarial influence while supporting economic growth and security.
2. By July 1, 2026, the department of emergency services shall produce a written report outlining its findings and recommendations. The report must:
 - a. Provide a detailed analysis of the foreign adversary threats and vulnerabilities specific to the state;
 - b. Identify critical risks across sectors, including infrastructure, security, academia, and economic investments;
 - c. Provide sector specific mitigation recommendations designed to reduce vulnerabilities in infrastructure, academic institutions, economic investments, and other prominent sectors in the state; and
 - d. Include a proposal providing for the establishment of a state intelligence unit and the structure, roles, and operational procedures required for continuous monitoring of foreign adversary threats by the state intelligence unit.
3. Before September 1, 2026, the department of emergency services shall present the recommendations in the report under subsection 2, and any proposed legislation necessary to implement the recommendations, to the legislative management. The findings in the report must remain in the exclusive possession and under the control of the department of emergency services and is an exempt record under chapter 44-04.

Speaker of the House

President of the Senate

Chief Clerk of the House

Secretary of the Senate

This certifies that the within bill originated in the House of Representatives of the Sixty-ninth Legislative Assembly of North Dakota and is known on the records of that body as House Bill No. 1209.

House Vote: Yeas 92 Nays 0 Absent 2

Senate Vote: Yeas 40 Nays 7 Absent 0

Chief Clerk of the House

Received by the Governor at _____ M. on _____, 2025.

Approved at _____ M. on _____, 2025.

Governor

Filed in this office this _____ day of _____, 2025,

at _____ o'clock _____ M.

Secretary of State